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MOTIONS TO QUASH

The Court

tenders the following tentative decision in the matter Donald Stewart, et al. v. Disney Content Services Co., Inc., et al., Los Angeles County Superior Court case number 24STCV16415, set for hearing on July 17, 2026. Donald Stewart and Taneisha Polk (collectively, Plaintiffs) move for orders quashing the deposition subpoenas for the production of business records served on their subsequent employers as third parties by Disney Content Services Co., Inc. (Defendant) pursuant to Code of Civil Procedure sections 1985.3 and 1987.1. Defendant opposes the motions. The motions are denied.

A.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things . . . at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b) . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) Any party to the action may make such a motion. (Id., § 1987.1, subd. (b)(1).) "Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to

the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Id., § 1985.3, subd. (g).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a “more limited scope of discovery available from nonparties.” (Ibid.)

“In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

B. Discussion

Plaintiffs move to quash deposition subpoenas served on their subsequent employers by Defendant pursuant to Code of Civil Procedure section 1985.3. Plaintiffs advance multiple arguments in support of quashing the subpoenas: (1) they infringe on Plaintiffs’ constitutional right to privacy; (2) the subpoenas are overbroad; (3) the subpoenas cover irrelevant matters; (4) the subpoenas cannot be used to establish an after-acquired evidence defense; and (5) Defendant can obtain the information through less intrusive means. The Court will address each argument in turn.

The subpoenas do not improperly infringe on Plaintiffs’ constitutional rights to privacy.

First, Plaintiffs argue that

Defendant's attempt to obtain their records from subsequent employers intrudes on their rights to privacy under the California Constitution. (Cal. Const., Art. 1, § 1.) A party asserting a privacy right must "establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 (Williams).) The party seeking information may then "raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy." (Ibid.) The Court then balances those competing considerations. (Ibid.)

Plaintiffs must first show that they

have a legally protected privacy interest in the information sought by Defendant. Specifically, Plaintiffs assert a privacy interest in employment records. Individuals do have a privacy interest in their confidential personnel records. (See Board of Trustees of Leland Stanford Jr. University v. Superior Court (Dong) (1981) 119 Cal.App.3d 516, 528–530; San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal. App. 4th 1083, 1097.) Plaintiffs have also demonstrated an objectively reasonable expectation of privacy in the given circumstances, given that they are no longer employed at the third-party entities and the subpoenas seek effectively all employee records. (Royer Decl. ¶ 4.) Finally, Defendant's sought production constitutes a serious intrusion of Plaintiff's privacy interest. Defendant's document requests include any personnel files, all documents related to any reprimands or disciplinary action, all compensation information, all documents related to accommodation requests, and all documents related to the employers' decision to terminate or retain Plaintiffs. These matters are private and thus Defendant's requests constitute a serious intrusion.

The burden then shifts to

Defendant to demonstrate legitimate and important countervailing interests served by disclosure. Here, Plaintiffs have put their subsequent compensation and employment information at issue by alleging that they have lost earnings because of their termination by Defendant and have suffered emotional and physical distress. (SAC ¶¶ 45, 48, 50, 53.) Plaintiffs' past employment records serve the legitimate and countervailing interest of determining from which conditions Plaintiffs currently suffer due to their prior termination and what earnings

Plaintiffs have lost. Thus, Defendant has met its burden of demonstrating legitimate and important countervailing interests.

In responses, Plaintiffs argue that Defendant can obtain the same information from depositions and document requests served on themselves. However, Defendant has already sought the relevant materials this way and been unsuccessful and still seeks records from the employers to challenge Plaintiffs' credibility. (Luevano Decl. ¶¶ 12, 15, 20.) Under these facts, the Court does not find that feasible alternatives or protective measures exist. Thus, the Court does not find that the subpoena violates Plaintiff's constitutional right to privacy under Williams.

The subpoenas are not overbroad or irrelevant.

Second, Plaintiffs argue that the relevant subpoenas are overbroad or irrelevant. Discovery is proper if relevant to the matter and admissible in evidence or "reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) However, "[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Id., § 2017.020, subd. (a).) Here, as discussed ante, the information sought is relevant to Defendant's defenses to Plaintiffs' claims. Additionally, the Court finds that the scope of discovery sought is not excessive and the subpoenas are not overbroad or irrelevant.

Plaintiffs' argument regarding the after-acquired evidence defense is inapposite.

Third, Plaintiffs argue that Defendant may not limit its liability through an after-acquired evidence defense. This defense applies when "after an employee's termination, the employer learns of employee wrongdoing that would have resulted in the employee's discharge in any event." (Jaramillo v. County of Orange (2011) 200 Cal.App.4th 811, 819.) Here, Defendant's subpoenas seek information related to Plaintiffs' claims for damages and are not premised on the defense. Thus, this argument is irrelevant. Accordingly, Plaintiffs' motions are denied.

Conclusion:

The Court denies

Plaintiffs' motions to quash.